

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

NICHOLAS MARTINY,

Plaintiff,

Index No.

- against -

SUMMONS

THE CITY OF NEW YORK, a municipal entity; New York City Police Officers MATTHEW ESCUDERO (Shield No. 26192), ROBERT HOEY (Shield No. 19196), and Sgt. JOHN DOE (whose identity is unknown but who is known to be personnel of the New York City Police Department); and New York City Fire Department Emergency Medical Technicians RONALD GEORGIO and FRANCISCO PINO DUARTE, all of whom are sued individually and in their official capacities,

Plaintiff designates New York County as the County of Venue

Venue is based upon residence of Plaintiff

Defendants.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon plaintiff's attorney, at their address stated below, an answer to the attached complaint.

If this summons was personally served upon you in the State of New York, the answer must be served within 20 days after such service of the summons, excluding the date of service. If the summons was not personally delivered to you within the State of New York, the answer must be served within 30 days after service of the summons is complete as provided by law. If you do not serve an answer to the attached complaint within the applicable time limitation, a judgment may be entered against you, by plaintiff, for the relief demanded in the complaint, without further notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for the County of New York. This action is brought in the County of New York because it is the county in which Plaintiff resides.

Dated: February 16, 2018
New York, New York

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Bronx, New York 10466

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FDNY Headquarters
9 Metro Tech Center
Brooklyn, NY 11201

EMT FRANCISCO PINO DUARTE
FDNY Headquarters
9 Metro Tech Center
Brooklyn, NY 11201

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
NICOLAS MARTINY,

Plaintiff,

- against -

THE CITY OF NEW YORK, a municipal entity; New York City Police Officers MATTHEW ESCUDERO (Shield No. 26192), ROBERT HOEY (Shield No. 19196), and Sgt. JOHN DOE (whose identity is unknown but who is known to be personnel of the New York City Police Department); and New York City Fire Department Emergency Medical Technicians RONALD GEORGIO and FRANCISCO PINO DUARTE, all of whom are sued individually and in their official capacities,
Defendants.

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Index. No.:

VERIFIED COMPLAINT

JURY TRIAL REQUESTED

Plaintiff NICOLAS MARTINY, by his attorneys, Alterman & Boop LLP and Beldock Levine & Hoffman LLP, as and for his complaint against the defendants named above alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action brought under 42 U.S.C. § 1983 for violations of rights guaranteed to Plaintiff NICOLAS MARTINY ("PLAINTIFF" or "Mr. MARTINY") by the Fourth and Fourteenth Amendments to the United States Constitution, and violations of the common law and the Constitution of the State of New York by defendants THE CITY OF NEW YORK, New York City Police Department ("NYPD") Police Officers MATTHEW ESCUDERO (Shield No. 26192) ("ESCUDERO") and ROBERT HOEY (Shield No. 19196) ("ESCUDERO") and Sgt. JOHN DOE ("Sgt. DOE"), and New York City Fire Department ("FDNY") Emergency Medical Technicians RONALD GEORGIO and FRANCISCO PINO DUARTE.

2. On the night of December 3, 2016, in Yonkers, New York, defendant Police Officers HOEY and ESCUDERO, without lawful justification and outside of the geographical area of their employment as New York City Police Officers, violently grabbed Mr. MARTINY, slammed him to the ground, kicked him in the face, and sprayed pepper spray directly into his face and eyes causing him extreme pain and physical injury. HOEY and ESCUDERO then handcuffed Mr. MARTINY and forced him to remain on the ground in need of medical attention instead of immediately calling for an ambulance. ESCUDERO and HOEY subsequently conferred with an NYPD sergeant who had responded to the scene and arranged for an ambulance to respond to 242 Katonah Avenue, an address within the police officers' jurisdiction. When the ambulance arrived at 242 Katonah Avenue, a police car escorted it to pick Mr. MARTINY up in Yonkers, New York. Police officers then accompanied Mr. MARTINY to Montefiore Hospital in Bronx, New York, and gave false accounts of how and where Mr. MARTINY was injured to cover-up their misconduct. Mr. MARTINY was released from the hospital without any criminal charges being lodged against him.

3. Plaintiff seeks (i) compensatory damages for loss of liberty, physical and psychological pain, and other injuries caused by the illegal actions of the Defendants; (ii) punitive damages to deter such intentional or reckless deviations from well-settled constitutional law; (iii) costs and attorneys' fees; (iv) and such other and further relief as this Court deems equitable and just.

JURISDICTION

4. This is a civil rights action brought pursuant to 42 U.S.C. § 1983 for violations of Plaintiff's rights secured by the Fourth and Fourteenth Amendments to the United States

Constitution; and for violations of Plaintiff's rights under Article 1 §§ 1, 6, and 12 of the New York State Constitution and the statutory and common law of New York State.

5. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

VENUE

6. Pursuant to CPLR 503 and 504, venue is proper in New York County because it is the county in which plaintiff resides and the police misconduct and civil rights violations giving rise to this action occurred primarily outside of New York City.

JURY DEMAND

7. Plaintiff demands a trial by jury in this action on each of their claims for which jury trial is legally available.

THE PARTIES

8. At all relevant times, Mr. MARTINY resided in New York County, in the City and State of New York.

9. Defendant CITY OF NEW YORK ("CITY") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department and does maintain the NYPD which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The CITY assumes the risks incidental to the maintenance of a police force and the employment of police officers.

10. Defendants Sgt. DOE and Police Officers ESCUDERO and HOEY are NYPD police officers who, *inter alia*, unlawfully seized, assaulted, battered, detained, and arrested Plaintiff.

11. At all times relevant herein, defendant Sgt. DOE and Police Officers ESCUDERO and HOEY were NYPD Police Officers.

12. Upon information and belief, defendants Sgt. DOE and Police Officers ESCUDERO and HOEY are still NYPD Police Officers.

13. At all times relevant herein, defendants Sgt. DOE and Police Officers ESCUDERO and HOEY acted under color of state law in the course and scope of their duties and/or functions as agents, employees, and/or officers of the CITY and/or the NYPD, and incidental to the lawful pursuit of their duties as agents, employees, and/or officers of the CITY and/or the NYPD.

14. At all times relevant herein, defendants Sgt. DOE and Police Officers ESCUDERO and HOEY violated clearly established rights and standards under the Fourth and Fourteenth Amendments to the United States Constitution and under equivalent New York State constitutional provisions, of which reasonable police officers in their circumstances would have known.

15. At all times relevant herein, defendants RONALD GEORGIO and FRANCISCO PINO DUARTE were FDNY Emergency Medical Technicians.

16. Upon information and belief, defendants RONALD GEORGIO and FRANCISCO PINO DUARTE are still FDNY Emergency Medical Technicians.

17. At all times relevant herein, FDNY Emergency Medical Technicians RONALD GEORGIO and FRANCISCO PINO DUARTE acted in the course and scope of their duties and/or functions as agents, employees, and/or officers of the CITY and/or the FDNY, and incidental to the lawful pursuit of their duties as agents, employees, and/or officers of the CITY and/or the FDNY.

ADMINISTRATIVE PROCEEDINGS

18. On February 28, 2017, PLAINTIFF timely served a Notice of Claim pursuant to New York State General Municipal Law § 50-e(l).

19. PLAINTIFF appeared at an administrative hearing held pursuant to New York General Municipal Law Section § 50-h on August 22, 2017.

20. More than thirty (30) days have elapsed since PLAINTIFF served his Notice of Claim and the CITY has not offered adjustment or payment thereof.

21. This action is filed within one year and ninety days of the events giving rise to PLAINTIFF's claims.

STATEMENT OF FACTS

22. Mr. MARTINY is 27 years old and freelance field engineer who works in computer networking.

23. Shortly after 12:00 a.m. on December 3, 2016, Mr. MARTINY and four of his friends were traveling in a cab in Yonkers, New York.

24. At or about 931 McClean Avenue, Yonkers, New York, Mr. MARTINY exited the cab to use the bathroom at a Sunoco gas station located there.

25. Mr. MARTINY found the bathroom door at the Sunoco station to be locked.

26. Unbeknownst to Mr. MARTINY, defendant Police Officers HOEY and ESCUDERO quickly ran up behind him.

27. 931 McClean Avenue, Yonkers, New York is not within the geographical area of defendant Police Officers HOEY's and ESCUDERO's employment as police officers or within one hundred yards of such geographical area.

28. Defendant Police Officers HOEY and ESCUDERO knew they were not within the geographical area of their employment.

29. Without reasonable cause to believe that Mr. MARTINY had committed a crime, defendant Police Officers HOEY and ESCUDERO, violently grabbed Mr. MARTINY from behind and spun him around.

30. Mr. MARTINY did not know that Defendant Police Officers HOEY and ESCUDERO were police officers.

31. Defendant Police Officers HOEY and ESCUDERO were in plain clothes and did not identify themselves as police officers.

32. Defendant Police Officers HOEY and ESCUDERO did not advise Mr. MARTINY that he was under arrest.

33. Mr. MARTINY instinctively pulled back and tried to protect himself from defendant Police Officers ESCUDERO's and HOEY's assault.

34. Defendant Police Officers HOEY and ESCUDERO violently slammed Mr. MARTINY to the ground and kicked him in the face, causing a deep laceration in Mr. MARTINY's lip that required stitches and left him scarred. Mr. MARTINY also suffered abrasions to his hands. Mr. MARTINY suffered extreme pain

35. Defendant Police Officer HOEY sprayed Oleoresin Capsicum pepper spray (“pepper spray”) directly into Mr. MARTINY’s face, causing Mr. MARTINY to lose his sight and experience further extreme pain.

36. Defendant Police Officer HOEY’s use of pepper spray was entirely gratuitous; the use of pepper spray was not necessary to protect himself or another from an unlawful use of force, to effect an arrest, to establish physical control of a subject resisting arrest or custody, to establish physical control of an emotionally disturbed person, or to control a dangerous animal.

37. Defendant Police Officers HOEY and ESCUDERO handcuffed Mr. MARTINY and then forced him to remain in a sitting position on the ground.

38. Although Mr. MARTINY was visibly bleeding and in pain from being assaulted and pepper sprayed, defendant Police Officers HOEY and ESCUDERO did not render any first aid to Mr. MARTINY.

39. Upon information and belief, defendant Police Officers HOEY and ESCUDERO did not immediately request the response of Emergency Medical Services.

40. Upon information and belief, Defendant Police Officers HOEY and ESCUDERO called for additional police officers.

41. Sgt. DOE arrived at the scene.

42. Upon information and belief, after conferring with defendant Police Officers ESCUDERO and HOEY, Sgt. DOE called New York City Fire Department (“FDNY”) Emergency Medical Services (“EMS”) and requested that an ambulance respond to 242 Katonah Avenue, Bronx, New York.

43. 242 Katonah Avenue, Bronx, New York, is within the individual police officer defendants' and FDNY's geographical area of employment.

44. Upon information and belief, Sgt. DOE arranged for NYPD police officers to meet the FDNY ambulance at 242 Katonah Avenue, Bronx, New York.

45. Upon information and belief, FDNY Emergency Medical Technicians RONALD GEORGIO and FRANCISCO PINO DUARTE responded to 242 Katonah Avenue in an FDNY ambulance and were then escorted by NYPD police officers to 931 McClean Avenue, Yonkers, New York.

46. After FDNY Emergency Medical Technicians RONALD GEORGIO and FRANCISCO PINO DUARTE arrived at 931 McClean Avenue, Yonkers, New York, Mr. MARTINY, also accompanied by NYPD police officers, was taken to Montefiore Hospital in the Bronx, New York.

47. At Montefiore Hospital, NYPD police officers and FDNY Emergency Medical Technicians RONALD GEORGIO and FRANCISCO PINO DUARTE provided false information to hospital personnel as to how and where Mr. MARTINY had been injured.

48. NYPD police officers falsely told hospital personnel that Mr. Martini had tried to urinate on police officers when police officers had confronted him at 242 Katonah Avenue, Bronx, New York.

49. At Montefiore Hospital, Mr. MARTINY received treatment for the injuries to his mouth, lips, eyes and hands that had been caused by Defendants HOEY's and ESCUDERO's violent use of force against him.

50. Mr. MARTINY was finally released from Montefiore Hospital at 8:55 a.m.

51. Mr. MARTINY was never charged with having committed any crime or offense regarding the incident that took place on December 3, 2016.

52. Mr. MARTINY has sought medical care for the injuries he sustained because of the excessive force used against him by Defendant Police Officers HOEY and ESCUDERO.

53. At no time during the events described above was Mr. MARTINY a threat to the safety of himself or others, or disorderly. He had not committed any crime.

54. Upon information and belief, the individual defendant police officers had no warrant for Mr. MARTINY's arrest and no legal justification to arrest him, nor were they in danger as a result of Mr. MARTINY's actions.

55. At all times relevant herein, the individual defendant police officers were engaged in a joint venture. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during the said events.

56. The actions of the individual defendant police officers violated Mr. MARTINY's clearly established and well settled federal constitutional rights, including his Fourth Amendment right to be free from excessive force against his person.

57. Because of this incident, Mr. MARTINY has experienced humiliation, sustained physical injuries, and suffered—and continues to suffer—severe psychological and emotional distress.

Respondent Superior

58. The individual police officer defendants were employees of the CITY at the time of the incidents alleged herein.

59. The individual police officer defendants were acting at all relevant times within the scope of their employment with the CITY.

60. The CITY is therefore vicariously liable for the tortious acts of the individual police officer defendants.

FIRST CAUSE OF ACTION
(Constitutional Violations -- 42 U.S.C. § 1983)
Against Defendant Police Officers
HOEY and ESCUDERO

61. PLAINTIFF realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

62. In committing the acts and omissions complained of herein, defendant Police Officers HOEY and ESCUDERO acted under color of state law to deprive PLAINTIFF of certain constitutionally protected rights under the Fourth and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. freedom from unreasonable search and seizure of his person and property;
- b. freedom from arrest without probable cause;
- c. freedom from use of excessive force;
- d. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion or legal justification, of which wrongful detention PLAINTIFF was aware and did not consent; and
- e. freedom from deprivation of liberty without due process of law.

63. In committing the acts and omissions complained of herein, defendant Police Officers HOEY and ESCUDERO breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

64. As a direct and proximate result of defendant Police Officers HOEY's and ESCUDERO's deprivation of PLAINTIFF's constitutional rights, PLAINTIFF suffered the injuries and damages set forth above.

65. The unlawful conduct of Defendant Police Officers HOEY and ESCUDERO was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

**SECOND CAUSE OF ACTION
(Civil Rights Conspiracy -- 42 U.S.C. § 1983)
Against All Individual Defendants**

66. PLAINTIFF realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

67. Defendants Sgt. DOE and Police Officers HOEY and ESCUDERO, acting within the scope of their authority and under color of state law, and FDNY Emergency Medical Technicians RONALD GEORGIO and FRANCISCO PINO DUARTE, agreed among themselves and with other individuals to act in concert in order to deprive Mr. MARTINY of his clearly established Fourth and Fourteenth Amendment rights to be free from unreasonable searches and seizures, excessive force, false arrest, false imprisonment, and deprivation of liberty without due process of law.

68. In furtherance of the conspiracy, defendants engaged in and facilitated overt acts, including, without limitation, fabricating false, inculpatory evidence that Mr. MARTINY's arrest took place inside the defendant police officers' geographical area of employment at 242nd Street and Katonah Avenue in the Bronx, New York.

69. As a direct and proximate result of defendant Sgt. DOE's, Police Officers HOEY's and ESCUDERO's, and FDNY Emergency Medical Technicians RONALD GEORGIO's and FRANCISCO PINO DUARTE's actions, PLAINTIFF suffered the injuries and damages set forth above.

70. The individual defendants committed the foregoing acts intentionally, wilfully, and with malicious disregard for PLAINTIFF's rights, and are therefore liable for punitive damages.

THIRD CAUSE OF ACTION
(New York State Constitutional Violations)
Against Defendant Police Officers
HOEY and ESCUDERO

71. PLAINTIFF realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

72. Defendants' conduct breached the protections guaranteed to PLAINTIFF by the New York State Constitution including, but not limited to, Article I, §§ 1, 6, and 12, and including the following rights:

- a. Plaintiff was deprived of rights and privileges secured to him as a citizen of the State of New York, in violation of New York State Constitution Article 1, § 1;
- b. Plaintiff was deprived of his rights to due process, in violation of New York State Constitution Article 1, § 6;
- c. Plaintiff was deprived of his right to be free from unreasonable searches and seizures, in violation of New York State Constitution Article 1, § 12.

73. The deprivation of PLAINTIFF's rights under the New York State Constitution resulted in the injuries and damages set forth above.

FOURTH CAUSE OF ACTION
(False Arrest and False Imprisonment)
Against Defendant Police Officers
HOEY and ESCUDERO

74. PLAINTIFF realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

75. Defendant Police Officers HOEY and ESCUDERO through the foregoing acts, caused PLAINTIFF to be wrongfully detained without good faith, reasonable suspicion, or legal justification, of which detention PLAINTIFF was aware and to which he did not consent.

76. Defendant Police Officers HOEY and ESCUDERO committed the foregoing acts intentionally, willfully, and with malicious disregard for PLAINTIFF's rights and are therefore liable for punitive damages.

FIFTH CAUSE OF ACTION
(Assault and Battery)
Against Defendant Police Officers
HOEY and ESCUDERO

77. PLAINTIFF realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

78. Defendant Police Officers HOEY and ESCUDERO, without just cause, wilfully and maliciously used physical force against PLAINTIFF causing him injury.

79. Defendant Police Officers HOEY and ESCUDERO committed the foregoing acts intentionally, wilfully, and with malicious disregard for PLAINTIFF's rights, and are therefore liable for punitive damages.

SIXTH CAUSE OF ACTION
(Negligence)
Against Defendant Police Officers
HOEY and ESCUDERO

80. PLAINTIFF realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

81. Defendant Police Officers HOEY and ESCUDERO owed PLAINTIFF a duty of care, including the duty to exercise due care in the course of their duties as NYPD officers and the duty to protect citizens from the intentional misconduct of other NYPD officers.

82. Defendant Police Officers HOEY and ESCUDERO, through the foregoing acts, negligently failed to use due care in the performance of their duties in that they failed to perform their duties with the degree of care that a reasonably prudent and careful officer would have used under similar circumstances.

83. All of these acts were performed without any negligence on the part of PLAINTIFF and were the proximate cause of the injuries to PLAINTIFF.

SEVENTH CAUSE OF ACTION
(Negligent Infliction of Emotional Distress)
Against Defendant Police Officers
HOEY and ESCUDERO

84. PLAINTIFF realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

85. As police officers acting in the performance of their duties, defendant Police Officers HOEY and ESCUDERO owed PLAINTIFF a duty of care.

86. In breach of that duty, defendant Police Officers HOEY and ESCUDERO endangered PLAINTIFF's safety and caused PLAINTIFF to fear for his safety.

87. As a result, PLAINTIFF suffered emotional distress.

EIGHTH CAUSE OF ACTION

**(Negligent Hiring, Training, and Supervision Under State Law)
Against Defendant City of New York**

88. PLAINTIFF realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

89. Defendant CITY is liable to PLAINTIFF because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to adequately hire, train, supervise, and discipline its agents, servants, and/or employees employed and/or the NYPD with regard to their aforementioned duties.

DEMAND FOR RELIEF

WHEREFORE, PLAINTIFF demands the following relief against the defendants, jointly and severally:

- (a) compensatory damages in an amount just and reasonable and in conformity with the evidence at trial;
- (b) punitive damages against all individual defendants to the extent allowable by law;
- (c) attorneys' fees;
- (d) the costs and disbursements of this action;
- (e) interest; and
- (f) such other and further relief as this Court deems just and proper.

Dated: New York, New York
February 16, 2018

BELDOCK LEVINE & HOFFMAN LLP

By 

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Attorneys for Plaintiff

ATTORNEY'S VERIFICATION

I, Marc A. Cannan, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

I am the attorney of record for the Plaintiff, Nicolas Martiny.

I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, and other pertinent information contained in my files.

Dated: February 16, 2018
New York, New York

By: 

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